

Amendment No. 3 to SB0942

White
Signature of Sponsor

AMEND Senate Bill No. 942*

House Bill No. 1040

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 63, is amended by adding the following as a new chapter:

63-33-101.

As used in this part:

(1) "Agency" means any organization, company, or institution that recruits, hires, contracts, or assigns interpreters to provide sign language interpreting services;

(2) "Board" means the board of professional sign language interpreters, created by § 63-33-102;

(3) "Emergency" means an unforeseen situation or condition that requires immediate action to prevent harm, ensure safety, or address a critical need for communication access, including, but not limited to, medical emergencies, law enforcement interactions, or other urgent circumstances where a delay in providing interpreting services could result in significant risk to life, health, or public order;

(4) "Entity" means a person, group, corporation, nonprofit organization, association, or other legal body that engages in the assignment or coordination of sign language interpreting services;

(5) "Licensed deaf interpreter" means a deaf person who holds a valid license to practice as a deaf interpreter;

(6) "Licensed sign language interpreter" means a person who holds a valid license to practice sign language interpreting;

(7) "Provisional sign language interpreter" means a person who meets the requirements for a provisional license in sign language interpreting;

(8) "Sign language" means a visual and manual system of communication used by deaf, deaf-blind, and hard of hearing persons;

(9) "Sign language interpreting" means facilitating communication between persons who communicate through sign language and persons who communicate through spoken language to convey all auditory and signed information so that both persons can fully understand; and

(10) "Temporary nonresident interpreter" means a person who meets the requirements for a temporary nonresident license in sign language interpreting.

63-33-102.

(a) There is created the Tennessee board of professional sign language interpreters, to be administratively attached to and receive administrative support from the division of health related boards within the department of health.

(b)

(1) The board consists of five (5) citizens of this state who are representative of state demographics, and the deaf, deaf-blind, hard of hearing, and sign language interpreting community in this state. The board is appointed by the governor and consists of:

(A) One (1) deaf, deaf-blind, or hard of hearing member in a deaf or interpreting study department at a state university;

(B) Two (2) deaf, deaf-blind, or hard of hearing members with knowledge of interpreter issues, to be nominated by the Tennessee Association of the Deaf; and

(C) Two (2) licensed sign language interpreters at-large, to be nominated by the Tennessee Registry of Interpreters for the Deaf.

(2) If any nominating organization listed in subdivision (b)(1) ceases to exist, then the board may select an equivalent organization to nominate persons to the board.

63-33-103.

(a) The division of health related boards shall submit all applications received for membership on the board and any recommendations on the applications to the governor for consideration. The governor shall consider such recommendations in appointing members to the board.

(b) The governor shall appoint new members to complete the term of any vacated board position. The person filling the vacated position must possess the same qualifications as those required for such position.

(c) The governor may remove a board member for neglect of duty or malfeasance in office.

63-33-104.

(a) The initial members' terms are staggered as follows:

(1) The member appointed under § 63-33-102(b)(1)(A) serves an initial term of two (2) years;

(2) The members appointed under § 63-33-102(b)(1)(B) serve initial terms of three (3) years; and

(3) The members appointed under § 63-33-102(b)(1)(C) serve initial terms of four (4) years.

(b)

(1) The board shall meet at least twice annually, and may conduct one (1) of the meetings by conference call or video conference in accordance with the requirements of § 8-44-108.

(2) Members of the board receive no compensation for their service but must be reimbursed for official travel expenses incurred in the performance of their official duties in accordance with the comprehensive travel regulations as promulgated by the department of finance and administration and approved by the attorney general and reporter.

63-33-105.

The board shall promulgate rules, in consultation with the Tennessee council for the deaf, deaf-blind, and hard of hearing, to implement, administer, and otherwise effectuate the purposes of this part. All rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5. The rules must be published in the standards of professional practice, made available to all licensees, and must include, but not be limited to, rules regarding the licensure and regulation of the profession.

63-33-106.

(a)

(1) A person must not be granted a license to engage in the practice of sign language interpreting for remuneration within this state unless the person makes application to the board for the license, along with a nonrefundable fee as set by the board.

(2) The application must contain the name of the applicant, and show that such person:

(A) Has attained eighteen (18) years of age;

(B) Is a citizen of the United States or an individual enumerated in 8 U.S.C. § 1622(b);

(C) Has completed a criminal background check;

(D) Holds an active professionally recognized certification; and

(E) Must commit to completing an average of eighty (80) hours of professional development in interpreting every four (4) years.

(3) An application for licensure must be submitted on forms provided by the board and include any documentation required to determine eligibility. The board has the authority to establish qualifications and approve applicants for provisional licensure.

(4) Sign language interpreter licenses are valid for four (4) years, both upon their issuance and their renewal.

(5) The board shall issue a sign language interpreter license to persons who satisfy the qualification requirements to engage in the practice of sign language interpreting pursuant to this subsection (a).

(b)

(1) A person must not be granted a license to engage in the practice of deaf interpreting for remuneration within this state unless the person makes application to the board for the license, along with a nonrefundable fee as set by the board.

(2) The application must contain the name of the applicant, and show that such person:

(A) Is deaf or hard-of-hearing;

(B) Has attained eighteen (18) years of age;

(C) Is a citizen of the United States or an individual enumerated in 8 U.S.C. § 1622(b);

(D) Has completed a criminal background check;

(E) Provides satisfactory evidence of required sign language skills as measured by a nationally recognized sign language proficiency interview selected by the board;

(F) Submits an affidavit of intent to comply with board established requirements for ethical practice; and

(G) Must commit to completing an average of eighty (80) hours of professional development in interpreting every four (4) years.

(3) An application for licensure as a deaf interpreter must be on a form prescribed and furnished by the board, contain statements made under oath showing the applicant's education and a detailed summary of the applicant's technical experience, and contain references, none of whom may be members of the board.

(4) Deaf interpreter licenses are valid for four (4) years, both upon their issuance and their renewal.

(5) The board shall issue a deaf interpreter license to persons who satisfy the qualification requirements to engage in the practice of deaf interpreting pursuant to this subsection (b).

(c)

(1) A person must not be granted a provisional license to engage in the practice of sign language interpreting for remuneration within this state unless the person makes application to the board for the license, along with a nonrefundable fee as set by the board.

(2) The application must contain the name of the applicant, and show that such person:

(A) Has attained eighteen (18) years of age;

(B) Is a citizen of the United States or an individual enumerated in 8 U.S.C. § 1622(b);

(C) Has completed a criminal background check;

(D) Has provided satisfactory evidence of required sign language skills as measured by a nationally recognized sign language proficiency interview selected by the board;

(E) Has provided evidence of passing a recognized written professional ethics examination as determined by the board;

(F) Has submitted an affidavit of intent to comply with board established requirements for ethical practice; and

(G) Commits to completing an average of eighty (80) hours of professional development in interpreting over each four-year period.

(3) Applications for provisional licensure must be signed and sworn by the applicants, and submitted on forms furnished by the board.

(4) The board shall issue a provisional interpreter license to persons who satisfy the qualification requirements to engage in the practice of interpreting pursuant to this subsection (c).

(5) A provisional license to engage in the practice of sign language interpreting is valid for a period of four (4) years and may be approved for renewal on an annual basis upon the expiration of the initial four-year period.

(d)

(1) The board shall not issue a person a license as a temporary nonresident sign language interpreter within this state unless such person works no more than ninety (90) days per calendar year, makes an application to the board for the license, and submits a nonrefundable fee as set by the board.

(2) The application must contain the name of the applicant, showing that such person:

(A) Is a permanent residence of a state other than this state;

(B) Has attained eighteen (18) years of age;

(C) Holds an active professionally recognized certification; and

(D) Has submitted an affidavit of intent to comply with board established requirements for ethical practice.

(3) Applications for licensure as a temporary nonresident interpreter must be signed and sworn by the applicants and submitted on forms furnished by the board.

(4) The board shall issue a temporary nonresident interpreter license to persons who satisfy the qualification requirements to engage in the practice of interpreting pursuant to this subsection (d).

(5)

(A) A temporary nonresident interpreter license must be renewed on an annual basis.

(B) A person may petition to the board to extend an active temporary nonresident interpreter license beyond the maximum ninety-day period described in subdivision (d)(1).

(e)

(1) A person shall not engage in, or attempt to engage in, the practice of sign language interpreting for remuneration in this state unless the person is a licensed sign language interpreter, licensed deaf interpreter, provisional sign language interpreter, or temporary nonresident interpreter.

(2) Notwithstanding subdivision (e)(1), this part does not prevent a person from engaging in the practice of sign language or deaf interpreting without a license if:

(A) A person is providing interpreting services during an emergency;

(B) A person is providing interpreting services in religious services and events;

(C) A person is providing interpreting services in mentoring or training programs approved by the board;

(D) A person is providing interpreting services in informal settings for friends, families, or guests;

(E) A person is providing interpreting services as an intern or student under the supervision of a person licensed to provide interpreting services;

(F) The client makes a diligent attempt to procure a licensed interpreter, but none is available in the timeframe specified;

(G) A person providing interpreting services is a foreign sign language interpreter;

(H) A person providing interpreting services is an educational interpreter licensed with the department of education;

(I) The person is using video relay interpreting or video remote interpreting services; or

(J) A person is providing interpreting services during funerals, memorial services, or other nonreligious community events.

63-33-107.

(a)

(1) This part does not apply to persons who, prior to July 1, 2028:

(A) Are eighteen (18) years of age or older;

(B) Are citizens of the United States or individuals enumerated in 8 U.S.C. § 1622(b);

(C) Are already engaged in the practice of sign language interpreting;

(D) Do not meet the requirements set forth for licensure or licensure under a reciprocal agreement;

(E) Submit to the board:

(i) An affidavit setting forth documentation of at least three hundred (300) hours of work experience as a paid sign language interpreter during the prior five-year period;

(ii) A completed criminal background check;

(iii) An affidavit of intent to comply with board established requirements for ethical practice;

(iv) Satisfactory proof of required sign language skills as measured by a nationally recognized sign language proficiency interview selected by the board; and

(v) Satisfactory proof of having completed twenty (20) hours of professional development in interpreting annually.

(2) Applications for licensure under this subsection (a) must be signed and sworn by the applicants and submitted on forms furnished by the board. All applicants who are deemed qualified to engage in the practice of sign language interpreting pursuant to this part are issued a license as a sign language interpreter, which is valid for four (4) years from the date of issuance.

(b) The board may issue a license as a sign language interpreter or as a deaf interpreter without examination to nonresidents who:

(1) Are eighteen (18) years of age or older and hold a valid license or certificate of registration as a sign language interpreter or deaf interpreter in another jurisdiction that:

(A) Has substantially the same requirements for licensing or registration as a sign language interpreter or a deaf interpreter as are contained in this part; or

(B) Has entered into a reciprocal agreement with the board permitting licenses to be issued without examination to sign language interpreters or deaf interpreters residing in and registered by this state;

(2) Proves by sworn affidavits that the nonresident has continuously and lawfully practiced as a sign language interpreter or a deaf interpreter in another jurisdiction for the immediately preceding five (5) years; or

(3) Has held a military occupational skill rating in a branch of the military service for two (2) or more years that required the person to perform the duties of a sign language interpreter or of a deaf interpreter.

(c)

(1) The licensure requirements of this part do not apply to sign language interpreters or to deaf interpreters who are employed exclusively by or otherwise provide interpreting services for religious entities exempted from coverage of Title III of the Americans with Disabilities Act; provided, that their services are limited to activities or services conducted within the religious entity and for religious purposes.

(2) The exception in subdivision (c)(1) does not apply to interpreting services provided during funerals, memorial services, or other nonreligious community events.

63-33-108.

The board shall promulgate rules for applying for licensure renewal by sign language interpreters, deaf interpreters, and provisional sign language interpreter. The application for renewal must be accompanied by:

(1) Payment of a renewal fee and any late fee;

(2) Evidence of having completed an average of eighty (80) hours of professional development during the four (4) years of licensure;

(3) A completed criminal background check; and

(4) An affidavit of intent to comply with board established requirements for ethical practice.

63-33-109.

Reasonable fees for licensure, provisional licensure, temporary nonresident licensure, and licensure through reciprocal agreement under this part, both for initial licenses and at licensure renewal, are established by rules promulgated by the board. All monies collected pursuant to this part must be deposited into the state board of sign language interpreters fund, established under § 63-33-110. All expenses incurred by the board in implementing and administering this part must be paid out of the fund; however, the board's expenses must not be in excess of the monies in the fund. The board shall charge and collect the fees upon the application for an initial license, renewal of a license, and reinstatement of a suspended license, all of which must be deposited into the fund.

63-33-110.

(a) Notwithstanding any law relating to the deposit of state monies to the contrary, all monies collected pursuant to this part must be deposited in the state treasury in a separate fund to be known as the fund of the state board of sign language interpreters fund.

(b) Disbursements from the fund must be made solely for the purpose of defraying expenses incurred in the implementation and enforcement of this part.

(c) Such expenses are not payable from the general fund of the state, except for the initial expenses of the board prior to the collection of licensure fees sufficient to defray such expenses.

(d) Any part of the state board of sign language interpreters fund remaining at the end of a fiscal year does not revert to the general fund of the state but is carried forward until expended in accordance with this part.

(e) The board shall budget annually, in advance, its expenditures for programs, services, allocated overhead or chargebacks, and other normal operating expenses as determined by the board. These expenditures so established must be budgeted at the beginning of the fiscal year by the board, not to exceed the fees to be received by the board, including the excesses accumulated in the state board of sign language interpreters fund. The commissioner of finance and administration shall inform the board annually, in advance for budgeting purposes, of the allocation of all overhead or chargebacks to the board.

(f) Subject to approval of the comptroller of the treasury and the commissioner of finance and administration, the board may also contract for services to carry out this part.

63-33-111.

(a) A person who knowingly undertakes or attempts to undertake the practice of sign language interpreting for remuneration without first having obtained a license is subject to a civil penalty established by the board. Each day of practice is a separate violation of this subsection (a). A person who is not licensed may not bring or maintain an action to recover payment for sign language interpreting services that the person performed in violation of this part.

(b) The board may suspend or revoke a sign language interpreter's license if the interpreter is deemed unqualified to hold a license in this state. An interpreter is deemed unqualified if such person:

(1) Is unable to show evidence of required credentials;

(2) Violates the established code of professional behavior established by the board;

(3) Is convicted of a felony or if the board determines a conviction of misdemeanor merits suspension or revocation of the license;

(4) Is placed on the state abuse registry;

- (5) Is placed on the state sex offender registry; or
- (6) Has had their license revoked in a reciprocal state.

(c) An agency or entity who knowingly assigns an unlicensed interpreter to undertake the practice of sign language interpreting for remuneration without confirming the interpreter's licensure status is subject to a civil penalty established by the board. Each day of practice by the unlicensed interpreter constitutes a separate violation of this subsection (c). An agency or entity who assigns unlicensed interpreters may not bring or maintain an action to recover payment for sign language interpreting services the person performed in violation of this part.

63-33-112.

A person may file a complaint alleging a violation of this part with the board within one hundred eighty (180) calendar days of the alleged violation. The complainant may withdraw the complaint at any time. The board shall promulgate rules to create a complaint process.

SECTION 2. Tennessee Code Annotated, Section 68-1-101(a)(8), is amended by inserting the following as a new subdivision:

Board of sign language interpreters;

SECTION 3. Tennessee Code Annotated, Section 71-4-2102, is amended by deleting the language "there is hereby created the Tennessee council for the deaf, deaf-blind, and hard of hearing, which has the duty to" and substituting "there is hereby created the Tennessee council for the deaf, deaf-blind, and hard of hearing, which, with the support of and in consultation with the Tennessee board of sign language interpreters, has the duty to".

SECTION 4. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2028, the public welfare requiring it.